

26STCV11156 26STCV11156

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-17

Motion: DEFENDANTS THE DRAGON LOGISTICS LLC AND DOUGLAS LOPEZS' [sic] DEMURRER TO PLAINTIFFS' COMPLAINT

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Case Number: 26STCV11156 Hearing Date: September 17, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS

ANGELES - CENTRAL DISTRICT

ANTHONY CONCHA, an individual;

ERICKA CONCHA, an individual,

Plaintiff,

vs.

THE DRAGON LOGISTICS LLC, a

California limited liability company; DOUGLAS LOPEZ, an individual; DOES

1through 50, inclusive,

Defendants.

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CASE NO: 26STCV11156

[TENTATIVE] ORDER RE: DEFENDANTS
THE DRAGON LOGISTICS LLC AND DOUGLAS LOPEZS' [sic] DEMURRER TO PLAINTIFFS'
COMPLAINT

Dept. 731

September 17, 2026

8:30 a.m.

Matter No. 8

Moving Party: Defendants, The Dragon Logistics LLC and Douglas
Lopez

Opposing Party: None;
Plaintiff Filed Superseding Pleading

Notice: OK

Court Order

Now before the Court is Defendants The Dragon Logistics LLC and Douglas Lopez's demurrer to Plaintiff's initial April 6, 2026, Complaint.

After review, the Court finds that Defendants' demurrer is MOOT and the corresponding hearing is TAKEN OFF CALENDAR.

A party may amend its pleading once as a matter of course before an answer, demurrer, or motion to strike is filed, or after such a motion is filed but before it is heard, provided the amendment is filed and served no later than the deadline for filing an opposition to the motion. (Code Civ. Proc., § 472, subd. (a).) That opposition deadline requires that all papers opposing a motion be filed and served at least nine court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) When a party timely files an amended complaint, the amendment moots any motion directed to the prior complaint. (JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 477; Sylmar Air Conditioning v. Pueblo Contracting Services, Inc. (2004) 122 Cal.App.4th 1049, 1054.) As a result, a demurrer directed to the superseded pleading should be taken off calendar once the amended complaint is filed. (People ex rel. Strathmann v. Acacia Research Corp. (2012) 210 Cal.App.4th 487, 506.) The right applies only to the original complaint initiating the action, and a plaintiff cannot amend an already amended complaint as of right even if a demurrer is pending against that operative pleading. (Hedwall v. PCMV, LLC (2018) 22 Cal.App.5th 564, 572–579.)

Here, in response to Defendants' demurrer, on September 3, 2026, i.e., nine court days prior to the September 17, 2026, hearing, Plaintiff filed a First Amended Complaint. Consequently, under the above authority, Defendants' demurrer is directed toward a moot pleading and is taken off calendar.

Defendants The Dragon Logistics LLC and Douglas Lopez are ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting

on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 17, 2026 _____

MARK C. KIM

Judge of the
Superior Court